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26-CIV-01347 MARSH & MCLENNAN AGENCY LLC VS. ELMER "RICK" FERGUSON

LINE 4

MARSH & MCLENNAN AGENCY LLC
ELMER "RICK" FERGUSON

BENJAMIN A. EMMERT
PRO PER

PETITIONER: MARSH & MCLENNAN AGENCY LLC'S MOTION FOR AN UNDERTAKING BY DEFENDANT PURSUANT TO CALIFORNIA CODE OF CIVIL PROCEDURE SECTION 1710.50

TENTATIVE RULING:

For the reasons stated below, Plaintiff/Judgment Creditor Marsh & McLennon Agency, LLC's ("MMA") "Motion for an Undertaking by Defendant Pursuant to [CCP] Sect. 1710.50," filed July 21, 2026, is DENIED pending the outcome of the Nov. 16, 2026 hearing on Judgment Debtor Ferguson's motion to vacate entry of the judgment.

The Court HEREBY EXTENDS THE STAY OF ENFORCEMENT issued on July 15, 2026 to Nov. 16, 2026.

On Feb. 24, 2026, Plaintiff/Judgment Creditor MMA filed this case to domesticate a July 1, 2025 money judgment in favor of MMA, and against Defendant/Judgment Debtor Ferguson, issued by U.S. District Court for the Southern District of New York. On May 18, 2026, Mr. Ferguson filed a motion seeking to vacate entry of the judgment, arguing it was procedurally incorrect to use procedures for domesticating a "sister-state" judgment for a judgment issued by a federal district court. Ferguson's initial motion Court denied it on procedural grounds. (June 29, 2026 Order.) On July 8, 2026, Ferguson filed a second motion to vacate entry of the judgment, which is set for hearing on Nov. 16, 2026.

On July 15, 2026, the Court granted Mr. Ferguson's *ex parte* application to stay enforcement of the judgment until at least Aug. 3, 2026. On July 21, 2026, MMA filed the present motion, seeking an order requiring Mr. Ferguson to post a bond/undertaking, pending resolution of Ferguson's appeal of the underlying SDNY judgment to the Second Circuit Court of Appeals.

Under Code Civ. Proc. § 1710.10 *et. seq.*, the Court has discretion as to whether to require an undertaking. The Court entered the judgment in this case based on a purported "sister-state" judgment, pursuant to Code Civ. Proc. § 1710.10 *et. seq.* Accordingly, this Motion is governed by Code Civ. Proc. § 1710.50, which grants this Court the *discretion* to require Mr. Ferguson (the judgment debtor) to post an undertaking pending the resolution of his appeal to the Second Circuit. See § 1710.50(c)(1) ("The court *may* require an undertaking in an amount it determines to be just ..." [emphasis added].)

MMA's use of Code Civ. Proc. § 1710.10 *et. seq.*'s procedures to domesticate a federal court judgment may have been improper. Since the underlying judgment here was issued by a federal court, § 1710.10 *et. seq.*'s procedures for domesticating "sister-state" judgments may not have been the proper procedural mechanism to domesticate the SDNY judgment. § 1710.10(c) states:

As used in this chapter: ...

(c) “Sister state judgment” means that part of any judgment, decree, or order of a court of a state of the United States, other than California, which requires the payment of money, but does not include a support order as defined in Section 155 of the Family Code.

LAW REVISION COMMISSION COMMENTS

Subdivision (c) is based on Section 1 of the revised Uniform Enforcement of Foreign Judgments Act of 1964. 9A Uniform Laws Ann. 488 (1965). However, unlike the Uniform Act which applies to all state and federal judgments entitled to full faith and credit, Section 1710.10(c) applies only to judgments of sister state courts which require the payment of money. ...

(emphasis added.) See also *Enforcing Sister State Judgments in California*; *Cal. Prac. Guide Enf. J. & Debt* Ch. 6J-2, stating:

A sister state judgment cannot be enforced in California until it is ‘domesticated’ (or registered) as a California judgment in accordance with applicable law—generally, pursuant to the Sister State Money-Judgments Act or by bringing an action to establish the judgment in California.

(1) Scope of Act

[6:1802.1] Not applicable to federal court judgments: The SSMJA does *not* apply to federal court judgments. [See CCP § 1710.10(c) and Comment thereto; compare *Richard A. Viguerie Co., Inc. v. Noble* (1980) 101 CA3d 62, 64, 161 CR 435, 436—D.C. superior court judgments constitute sister-state judgments entitled to entry in California under SSMJA]

(Instead, nearly all federal court judgments are enforceable by registration in a California federal district; see ¶ 6:1848 *ff.*)

Mr. Ferguson has filed a (second) motion to vacate this Court’s entry of the “sister-state” judgment, which is set for a hearing on Nov. 16, 2026. The ruling on that motion may impact the merits of requiring an undertaking.

MMA was advised to brief this question (the applicability of the Sister State Money Judgment Act) in the Court’s July 15, 2026 Order but has declined to brief its merits.

MMA has instead argued that Mr. Ferguson missed his statutory deadline to file a motion to vacate, because he did not file his initial Motion to Vacate Entry of Sister-State Judgment (which was denied on procedural grounds) until May 18, 2026. *The Rutter Group: Enforcement of Judgments*, states:

[6:1830] Vacating the judgment: The judgment debtor has 30 days following *service* of the notice of entry of judgment to move to vacate the judgment (but equitable relief may be available after this deadline expires). [CCP § 1710.40(b) and Comment thereto; see *Casey v. Hill* (2022) 79 CA5th 937, 960]

The Court has not yet ruled on this timeliness issue. But it does note that the docket reflects the fact that Mr. Ferguson did attempt to file his motion in a timely manner. He attempted to file the motion on March 23, 2026 but it was rejected for technical reasons, primarily because he did not include a case

number (his pleading specifically indicated he didn't know the case number). He attempted to file it again on April 28, 2026 but it was rejected due to a failure to pay a fee.

In exercising its discretion not to require an undertaking at this time, the Court considered that, based on the history and nature of this judgment, that an appeal is unlikely to be successful and that ultimately the judgment is likely going to be enforceable by some procedure. The Court also considered MMA's concern about Mr. Ferguson "attempt[ing] to conceal or transfer assets". However, as to that concern, MMA offers no evidence and Mr. Ferguson has lodged with the Court evidence of his current assets with a declaration signed under penalty of perjury. The Court has also considered the policies underlying Code of Civil Procedure Section 917.1 even though it concededly does not apply here. But, ultimately, the Court's concern regarding MMA's use of what appears to be an inapplicable procedure to enforce its judgment weighs more heavily against requiring an undertaking at this time.

In light of the foregoing, MMA's motion for an order requiring Mr. Ferguson to post an undertaking is DENIED, pending the outcome of the Nov. 16, 2026 hearing on Judgment Debtor Ferguson's motion to vacate entry of the judgment.

The Court HEREBY EXTENDS THE STAY OF ENFORCEMENT issued on July 15, 2026 to Nov. 16, 2026.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the plaintiff shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

02:00 PM

26-CIV-03505 SHANNON PEKARY VS. PALO ALTO PARK MUTUAL WATER COMPANY, ET AL.

LINE 5

SHANNON PEKARY
PALO ALTO PARK MUTUAL WATER COMPANY

PRO PER
BRIAN A. BARNHORST

DEFENDANTS NIAMBI LINCOLN AND FIDEL ALAS'S MOTION TO QUASH SERVICE OF SUMMONS AND COMPLAINT

TENTATIVE RULING:

Nominal Defendant Niambi Lincoln's motion for an order quashing service of the summons and complaint by Plaintiff Shannon Pekary is DENIED.

This case concerns the validity of Defendant Palo Alto Park Mutual Water Company's December 2025 election. Plaintiff brought the underlying action pursuant to Corporations Code section 7616 requesting the Court confirm the validity of the Palo Alto Park Mutual Water Company's December 20, 2025, election of directors. The complaint names Palo Alto Park Mutual Water Company as the corporate defendant and names movant of the instant motion, Niambi Lincoln, as a nominal defendant.

In the instant motion, Ms. Lincoln specially appears to challenge service of the summons and complaint as legally defective because service was via substituted service upon an unidentified Jane Doe and there is not completed statutory mailing because the date and place are blank on the form. Plaintiff, appearing pro se, opposes and contends that the service record indicates several attempts at personal service before posting the documents to Lincoln's front door and mailing them to her work and home addresses. Service was proper under the service provision in Corporations Code section 7616, subdivision (c).

A court gains jurisdiction over a defendant from the time the defendant is served with a copy of the summons and the complaint on which it is based as required under the Code of Civil Procedure. (Code Civ. Proc. §§ 410.50, 412.20.) A motion to quash is utilized by a defendant who makes a special appearance for the narrow purpose of contesting personal jurisdiction. (2 Witkin, Cal. Procedure (6th ed. 2026 March Update) Jurisdiction, § 231.) As argued by movant, the service of a substantially defective summons does not confer jurisdiction over a party. (*Greene v. Municipal Court* (1975) 51 Cal. App. 3d 446, 451.) The questions presented to the Court in this motion is whether the summons and its service are defective such that the summons did not confer this Court's jurisdiction over Ms. Lincoln.

As was said in *Donel, Inc. v. Badalian* (1978) 87 Cal.App.3d 327, 333, a case centering upon service by publication, "[n]o single formula nor mode of search can be said to constitute due diligence in every case." (Id. at 333.) After having read and considered both parties' positions and the proofs of service from appended to the declarations of Ms. Lincoln and plaintiff, the Court finds that plaintiff substantially complied with this Court's May 11, 2026 order which ordered plaintiff to "make best efforts" to personally serve [Ms. Lincoln]. (Declaration of Shannon Pekary iso Opposition to Motion to Quash, filed June 5, 2026, Ex. A.) Here, plaintiff hired registered process servers and the declarations of due diligence from them both, Donald Kaul and Scott Feely, demonstrate that a total of four attempts at personal service were made before posting and mailing to Ms. Lincoln, see *infra*:

- May 12, 2026, 3:25 p.m. Ms. Lincoln's Dumbarton home address (Feely)
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